

23SMCV05503 23SMCV05503

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-02

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Case Number: 23SMCV05503 Hearing Date: July 2, 2026 Dept: P

Tentative

Ruling

Joesph

Plasencia v. Uriel Gonzalez, Case No. 23SMCV05503

Plaintiff's

Motion for a Pre-Judgment Writ of Attachment

Hearing

Date: July 2, 2026

Motion

for a Pre-Judgment Writ of Attachment

Plaintiff

Joseph Plasencia sues Defendants Uriel Gonzalez ("Gonzalez"), Felipe Dejesus Carillo Cobian d/b/a Felco General Construction ("Felco"), and Philadelphia Indemnity Insurance Company for breach of contract, negligence, and fraud arising out of Defendants' allegedly below-standard remodel of Plaintiff's property at 100 S. Westgate Ave., Los Angeles, CA 90049. (First Amended Complaint ["FAC"], ¶ 2, 32.)

On March

27, 2025, Plaintiff filed their first motion for a pre-judgment writ of attachment. On April 9, 2025, Defendant filed opposition. On April 14, 2025, Plaintiff replied. On April 22, 2026, the Court denied the motion without prejudice but stated that it would consider a new motion for the contracted-for

amount. (Minute Order (April 22, 2026), p. 1). On May 29, 2025, Plaintiff filed this motion for writ of attachment for less than the contract amount. On June 27, 2025, the Court issued a tentative ruling granting the motion but ultimately continued the hearing pursuant to the parties' stipulation. (Minute Order (June 27, 2025).) On September 10, 2025, December 1, 2025, and March 15, 2026, the parties stipulated to continue the hearing again.

As of June

29, 2026, Plaintiff has not filed opposition. The Court's tentative ruling on this motion is the same as it was on June 27, 2025:

Plaintiff

Plascencia sues defendants Gonzalez, Cobian and Western Surety for breach of contract and negligence after contracting with defendants for home renovations. Plaintiff levied \$297,143.42 from Gonzalez's bank account pursuant to a now-vacated default. Plaintiff subsequently filed a cross-complaint in interpleader requesting the court determine what to do with the funds. Min. Order 4/22/25. The court ordered funds of \$243,216.24 would remain in the court trust account and \$53,927.18 was released to Gonzalez. Id. Plaintiff moves for a prejudgment writ of attachment for \$180,817.24. The motion is unopposed.

A

writ of an attachment may issue on a claim for money based on contract where the total amount owed is equal to or greater than \$500, and the amount sought is "fixed or readily ascertainable" by reference to the contract. A writ of attachment may not issue against a claim secured by real property, and it may only issue against a natural person when the claim arises out of the conduct of a "trade, business, or profession." Cal. Code Civ. Proc. §483.010. A writ of attachment will issue if the court finds (1) the claim on which the writ is based is one upon which an attachment may be issued, (2) plaintiff established the probable validity of the underlying claim, (3) the attachment is not sought for a purpose other than recovery on the claim upon which the attachment is based, and (4) the amount to be secured by the attachment is greater than zero. Cal. Code Civ. Proc. §484.090.

The

court denied without prejudice plaintiff's previous request for a prejudgment writ. Min. Order 4/22/25. The court ruled plaintiff could request a writ of \$243,216.24, the maximum amount supported by contract (Cal. Code Civ. Proc. §484.090). Id. Plaintiff now represents the amount paid to Gonzalez prior to

termination totaled \$180,817.24 and offers the declaration of counsel Glassman in support. Decl. Glassman para. 4; exh. B.

The motion is unopposed. The court previously found plaintiff could request a pre-judgment writ up to \$243,216.24; plaintiff requests less at \$180,817.24. GRANTED. (Minute Order (06/27/2025), pp. 1-2.)

Conclusion

Plaintiff's

Motion for a pre-judgment writ of attachment of \$180,817.24 is GRANTED.